

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 04/27/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09>

Meeting ID: 161 108 5023
Passcode: 869677

Courtroom Clerk's session

1. 9:00 AM CASE NUMBER: N26-0466
CASE NAME: PETITION OF: CALIFORNIA CIVIL RIGHTS DEPARTMENT, AN AGENCY OF THE STATE OF CALIFORNIA
HEARING ON ORDER TO SHOW CAUSE IN RE:
FILED BY:
TENTATIVE RULING:

Petitioner California Civil Rights Department ("Petitioner") filed a Petition for an Order Compelling Compliance with Subpoena for Interview of Person(s) Most Qualified on or about March 12, 2026 (the "Petition") and the Court issued its Order to Show Cause (the "OSC") pursuant to such Petition upon the *ex parte* application of Petitioner. The OSC was set for hearing on April 27, 2025 with briefing schedule as set forth therein. The Petition and OSC are opposed.

Background

Petitioner issued a subpoena for an investigative interview of the person(s) most qualified for Respondent UnitedHealth Group, Inc. (“Respondent”) on October 2, 2025. See Declaration of Val Erze filed March 12, 2026 (“Erze Decl.”), ¶4. An amended subpoena was served thereafter in November 2025 (the “Amended PMQ Subpoena”). *Id.* at ¶7. Objections were made by the responding party to two subject matters designated, designated as “Topic 19” and “Topic 20.” *Id.* at ¶8 *et seq.* Those subject matters are as follows:

19. Any complaints made against UnitedHealth related to violations of the California Fair Chance Act.
20. Respondent UnitedHealth’s policies, procedures, and practices related to investigations into complaints made by persons for violations of the California Fair Chance Act.

Amended PMQ Subpoena, p. 3, Declaration of Shéyron B. Cobb filed April 14, 2026 (“Cobb Decl.”), **Exhibit A**.

Respondent filed opposition papers in response to the OSC on April 14, 2026. Respondent indicates that its PMQ, Rebecca Dank, was interviewed on November 17, 2025 and “[d]uring the interview, CRD elected to examine Ms. Dank on Topics 19 and 20 notwithstanding Respondent’s prior written objections. Respondent preserved those objections on the record but, at CRD’s direction, allowed Ms. Dank to respond. Ms. Dank answered CRD’s questions regarding Topics 19 and 20 based on her personal knowledge and corporate role.” Cobb Decl., ¶¶4-5.

Thereafter, the parties met and conferred on the scope of such testimony. Cobb Decl., ¶6.

In January 2026, a new subpoena was issued which also included Topics 19 and 20 (the “January 2026 PMQ Subpoena”). Cobb Decl., ¶7 and **Exhibit C** thereto. That

- Topic 19: Any complaints made against UnitedHealth related to violations of the California Fair Chance Act.
- Topic 20: Respondent UnitedHealth’s policies, procedures, and practices related to investigations into complaints made by persons for violations of the California Fair Chance Act.

Respondent also notes that the January 2026 PMQ Subpoena was taken off calendar by agreement of the parties in connection with needing more time to review produced records. Cobb Decl., ¶10-11 and **Exhibits D and E** thereto. This petition then followed.

Reply papers were filed on April 20, 2026.

Analysis

Petitioner contends that Topics 19 and 20 were “not fully addressed in the November 17, 2025 PMQ interview.” See Erze Decl., ¶11. Petitioner did not produce any transcript of the PMQ interview or otherwise address, with specificity, the content of the interview vis-à-vis the extent to which Ms. Dank was able to substantively address Topics 19 and 20.

Moreover, it appears that the earlier PMQ, whatever issues there may have been, was superseded by the January 2026 PMQ Subpoena. That later subpoena was then taken off calendar with Petitioner’s

acquiescence. See Cobb Decl., **Exhibit D** (“We will postpone the PMK interview currently scheduled...”).

Petitioner has not shown that Respondent has failed to produce a witness on the designated topics. Indeed, that has already happened. To the extent that the prior witness was produced to be interviewed, Petitioner has failed to demonstrate that the witness failed to adequately address Topics 19 and 20. The further reply declaration still fails to sufficiently describe the extent of Ms. Dank’s testimony on the subject topics. The reply declaration briefly describes asking the witness “two questions related to the existence and processing of other complaints regarding the Fair Chance Act. CRD also asked the witness if she knew who might have knowledge about investigation of such complaints.” See Declaration of Val Erze filed April 20, 2026 (“Erze Reply Decl.”), ¶13. This says nothing about the scope of the response. Nor was any transcription, if any, provided, as noted above.

Nonetheless, the Court encourages the parties to meet and confer further to resolve the issue about whether a further PMQ designation and interview on these topics may resolve the pending issues.

The Court further notes that Respondent’s opposition declaration appears to downplay the extent to which it expressly refused to produce a PMQ on Topics 19 and 20. See Cobb Decl., ¶¶6-8. However, it appears that there was an outright refusal and standing on the objections. See Erze Reply Decl., **Exhibit 1** (“**Topics 19–20:** Respondent maintains its objections and will not produce a PMK on these topics.”).

Still, the Court concludes that Petitioner has failed to make a sufficient showing for the relief requested, especially given its voluntarily taking the January 2026 PMQ Subpoena off calendar and its failure to make sufficient substantive showing as to the substance of the initial PMQ testimony.

Disposition

The Court finds and rules as follows:

1. The Petition is DENIED and the OSC is DISCHARGED.
2. The Court shall enter the order after hearing.

2. 10:00 AM CASE NUMBER: C24-00605
CASE NAME: VIKAS PRAKASH VS. WILSON AQUINO
JURY TRIAL
FILED BY:
TENTATIVE RULING:

Continued pursuant to Order dated April 24, 2026.